SAMPLE FOR REVIEW. Parties are fictional. Text: Common Paper Mutual NDA Standard Terms v1.0, CC BY 4.0 (commonpaper.com/standards/mutual-nda/1.0). Cover Page filled in for this exercise.

Mutual Non-Disclosure Agreement

USING THIS MUTUAL NON-DISCLOSURE AGREEMENT

This Mutual Non-Disclosure Agreement (the "MNDA") consists of: (1) this Cover Page ("**Cover Page**") and (2) the Common Paper Mutual NDA Standard Terms Version 1.0 ("**Standard Terms**") identical to those posted at commonpaper.com/standards/mutual-nda/1.0. Any modifications of the Standard Terms should be made on the Cover Page, which will control over conflicts with the Standard Terms.

Purpose

(How Confidential Information may be used)

> Evaluating a pilot integration of Northwind's analytics API into PT Sinar Data Nusantara's logistics app, ~~including access to sample shipment data.~~including access to sample shipment data. Sample shipment data shall be limited to the minimum fields reasonably necessary for the Purpose, shall not include more customer personal data than needed for the pilot, and shall not be used by Northwind to train, improve, or benchmark any model, product, or service other than the specific pilot integration.

Effective Date

November 12, 2026

MNDA Term

(The length of this MNDA)

☒ Expires 1 year from Effective Date.

☐ Continues until terminated in accordance with the terms of the MNDA.

Term of Confidentiality

(How long Confidential Information is protected)

> ☒ ~~1 year from Effective Date, but in the case of trade secrets until Confidential Information is no longer considered a trade secret under applicable laws.~~3 years from Effective Date, but in the case of trade secrets until Confidential Information is no longer considered a trade secret under applicable laws.

☐ In perpetuity.

Governing Law & Jurisdiction

> ~~Governing Law: Delaware~~Governing Law: the laws of the Republic of Indonesia. This MNDA shall be made in the Indonesian language as the principal version, with an English version for Northwind Analytics, Inc.; in the event of any conflict, the Indonesian version shall control.

> ~~Jurisdiction: courts located in New Castle, DE~~Jurisdiction: the courts of the Republic of Indonesia.

MNDA Modifications

> ~~None.~~As follows:

1. Personal Data. Confidential Information that is or includes Personal Data as defined in Law No. 27 of 2022 on Personal Data Protection shall be processed only for the Purpose, in accordance with that Law and its implementing regulations, and shall be returned or destroyed within 10 (ten) Business Days after the earlier of the MNDA Term or the Disclosing Party's written request, except for copies retained in encrypted backups, which remain subject to this MNDA. Upon a Personal Data Protection Failure affecting the other party's Confidential Information, the Receiving Party shall notify the Disclosing Party in writing within 1 x 24 hours and shall reasonably cooperate on notification and remediation.

2. Service Providers. Disclosure under Section 2(b) to a cloud, hosting, analytics, or other processor may be made only under a written agreement that (i) limits use to the Purpose, (ii) imposes confidentiality and security obligations no less protective than this MNDA, (iii) prohibits onward disclosure except to subprocessors approved in writing by the Disclosing Party, and (iv) requires deletion or return of Confidential Information at the end of the processing.

3. No Modification of Law. Nothing in this MNDA reduces any obligation either party has under applicable law, including Law No. 27 of 2022 on Personal Data Protection.

By signing this Cover Page, each party agrees to enter into this MNDA as of the Effective Date.

	PARTY 1	PARTY 2
Signature		
Print Name	[signatory]	[signatory]
Title		
Company	Northwind Analytics, Inc. (Delaware, USA)	PT Sinar Data Nusantara (Jakarta, Indonesia)
Notice Address	legal@northwind.example	legal@sinardata.example
Date		

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Standard Terms

1. **Introduction**. This Mutual Non-Disclosure Agreement (which incorporates these Standard Terms and the Cover Page (defined below)) ("**MNDA**") allows each party ("**Disclosing Party**") to disclose or make available information in connection with the Purpose which (1) the Disclosing Party identifies to the receiving party ("**Receiving Party**") as "confidential", "proprietary", or the like or (2) should be reasonably understood as confidential or proprietary due to its nature and the circumstances of its disclosure ("**Confidential Information**"). Each party's Confidential Information also includes the existence and status of the parties' discussions and information on the Cover Page. Confidential Information includes technical or business information, product designs or roadmaps, requirements, pricing, security and compliance documentation, technology, inventions and know-how. To use this MNDA, the parties must complete and sign a cover page incorporating these Standard Terms ("**Cover Page**"). Each party is identified on the Cover Page and capitalized terms have the meanings given herein or on the Cover Page.

2. **Use and Protection of Confidential Information**. The Receiving Party shall: (a) use Confidential Information solely for the Purpose; (b) not disclose Confidential Information to third parties without the Disclosing Party's prior written approval, except that the Receiving Party may disclose Confidential Information to its employees, agents, advisors, contractors and other representatives having a reasonable need to know for the Purpose, provided these representatives are bound by confidentiality obligations no less protective of the Disclosing Party than the applicable terms in this MNDA and the Receiving Party remains responsible for their compliance with this MNDA; and (c) protect Confidential Information using at least the same protections the Receiving Party uses for its own

similar information but no less than a reasonable standard of care. Confidential Information that is or includes Personal Data shall be processed only for the Purpose and in accordance with Law No. 27 of 2022 on Personal Data Protection and its implementing regulations.

3. **Exceptions**. The Receiving Party's obligations in this MNDA do not apply to information that it can demonstrate: (a) is or becomes publicly available through no fault of the Receiving Party; (b) it rightfully knew or possessed prior to receipt from the Disclosing Party without confidentiality restrictions; (c) it rightfully obtained from a third party without confidentiality restrictions; or (d) it independently developed without using or referencing the Confidential Information. Subsection (a) does not apply to Personal Data that becomes publicly available as a result of a Personal Data Protection Failure of the Receiving Party. Subsections (b), (c), and (d) do not apply to Personal Data.

4. **Disclosures Required by Law**. The Receiving Party may disclose Confidential Information to the extent required by law, regulation or regulatory authority, subpoena or court order, provided (to the extent legally permitted) it provides the Disclosing Party reasonable advance notice of the required disclosure and reasonably cooperates, at the Disclosing Party's expense, with the Disclosing Party's efforts to obtain confidential treatment for the Confidential Information. Disclosure of Personal Data to a public authority shall be limited to the Personal Data legally required, and the Receiving Party shall record the request, the Personal Data disclosed, the date, and the authority.

5. **Term and Termination**. This MNDA commences on the Effective Date and expires at the end of the MNDA Term. Either party may terminate this MNDA for any or no reason upon written notice to the other party. The Receiving Party's obligations relating to Confidential Information will survive for the Term of Confidentiality, despite any expiration or termination of this MNDA.

6. **Return or Destruction of Confidential Information**. Upon expiration or termination of this MNDA or upon the Disclosing Party's earlier request, the Receiving Party will: (a) cease using Confidential Information; (b) promptly after the Disclosing Party's written request, destroy all Confidential Information in the Receiving Party's possession or control or return it to the Disclosing Party; and (c) if requested by the Disclosing Party, confirm its compliance with these obligations in writing. As an exception to subsection (b), the Receiving Party may retain Confidential Information in accordance with its standard backup or record retention policies or as required by law, but the terms of this MNDA will continue to apply to the retained Confidential Information. Confidential Information that is or includes Personal Data shall be destroyed (or, if the Disclosing Party so elects, returned) within 10 (ten) Business Days after expiration or termination or the Disclosing Party's earlier written request, and the Receiving Party shall not retain Personal Data under the backup exception for longer than 90 (ninety) days, after which any residual copy shall be permanently deleted.

7. **Proprietary Rights**. The Disclosing Party retains all of its intellectual property and other rights in its Confidential Information and its disclosure to the Receiving Party grants no license under such rights.

8. **Disclaimer**. ALL CONFIDENTIAL INFORMATION IS PROVIDED "AS IS", WITH ALL FAULTS, AND WITHOUT WARRANTIES, INCLUDING THE IMPLIED WARRANTIES OF TITLE, MERCHANTABILITY AND FITNESS FOR A PARTICULAR PURPOSE. The foregoing disclaimer does not limit either party's obligations under applicable law, including Law No. 27 of 2022 on Personal Data Protection, and does not apply to Personal Data.

9. **Governing Law and Jurisdiction**. This MNDA and all matters relating hereto are governed by, and construed in accordance with, the laws of the State of Governing Law, without regard to the conflict of laws provisions of such Governing Law. Any legal suit, action, or proceeding relating to this MNDA must be instituted in the federal or state courts located in Jurisdiction. Each party irrevocably submits to the exclusive jurisdiction of such Jurisdiction in any such suit, action, or proceeding. Notwithstanding the Cover Page, the parties agree that the courts of the Republic of Indonesia shall have exclusive jurisdiction over any dispute relating to this MNDA.

10. **Equitable Relief**. A breach of this MNDA may cause irreparable harm for which monetary damages are an insufficient remedy. Upon a breach of this MNDA, the Disclosing Party is entitled to seek appropriate equitable relief, including an injunction, in addition to its other remedies.

11. **General**. Neither party has an obligation under this MNDA to disclose Confidential Information to the other or proceed with any proposed transaction. Neither party may assign this MNDA without the prior written consent of the other party, except that either party may assign this MNDA in connection with a merger, reorganization, acquisition or other transfer of all or substantially all its assets or voting securities. Any assignment in violation of

this Section is null and void. This MNDA will bind and inure to the benefit of each party's permitted successors and assigns. Waivers must be signed by the waiving party's authorized representative and cannot be implied from conduct. If any provision of this MNDA is held unenforceable, it will be limited to the minimum extent necessary so the rest of this MNDA remains in effect. This MNDA (including the Cover Page) constitutes the entire agreement of the parties with respect to its subject matter, and supersedes all prior and contemporaneous understandings, agreements, representations, and warranties, whether written or oral, regarding such subject matter. This MNDA may only be amended, modified, waived, or supplemented by an agreement in writing signed by both parties. Notices, requests and approvals under this MNDA must be sent in writing to the email or postal addresses on the Cover Page and are deemed delivered on receipt. This MNDA may be executed in counterparts, including electronic copies, each of which is deemed an original and which together form the same agreement. If there is a conflict between the Cover Page and these Standard Terms, the Cover Page controls. Each party shall give written notice of a change in its notice address. Notices sent by email are effective on receipt if no bounce-back is received.

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